

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 5/27/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
9	30-2026-01563933 Park II Spectrum LLC vs. Chen	The Court has read and considered the Defendant's Motion to Quash Service of Summons (ROA 8), Plaintiff's Opposition (ROA 18), and Plaintiff's Objection to Defendant's Evidence (ROA 20). The Court takes Judicial Notice of Proofs of Service (ROA 12, 14 & 16) and Complaint (ROA 2). First, Plaintiff's Opposition references an "Exhibit A" which is purported to be attached to the Opposition, but no such document is attached to the Opposition filed with the Court. Additionally, Plaintiff references that on the Proofs of Service, there is a physical description of Ms. Joanna Zhu, but no such description is on the proofs of service filed with the Court (see ROA 12, 14, & 16). As to the Plaintiff's Objections: Objection #1 – Overruled. Objection #2 – Overruled. Objection #3 – Overruled.

		The Defendants signed a lease for the premises address. There is no documentation on the lease or in the Motion to Quash Service that Defendants have another address for service. Defendant's Motion to Quash Service lists their address as 7328 Spectrum, Irvine, CA 92618, which is the premises address. A registered process server who made multiple attempts at personal service may proceed with substituted service under Code of Civil Procedure § 415.20. Here, the registered process server obtained the name of the person who answered the door at the residence, and Ms. Zhu accepted the documents – there is no indication that Ms. Zhu refused service or indicated that she was not an occupant of the household. Case law such as <i>Zirbes v. Stratton</i> (1986) 187 Cal. App. 3d 1407, 1416-1417 allows for substituted service, which is reasonably calculated to give notice – the circumstances here are reasonable that it would give notice to the Defendants. The Court DENIES the Motion to Quash Service of Summons. Defendants are ordered to file a responsive pleading within 5 calendar days. Plaintiff is ordered to serve notice of the Court's ruling via email and mail.
10	30-2026-01567675 Catherine S. Burnett As Trustee Of The Estela Gomez Trust vs. Romo	The Court has read and considered the Defendant's Motion to Quash Service of Summons (ROA 11). The Court takes Judicial Notice of Proof of Service (ROA 8). California Evidence Code Section 647 establishes a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. Here, registered process server David Cunningham #1895 declared under penalty of perjury that he personally served the defendant on May 9, 2026, at 7:40 AM. Defendant has provided no evidence to rebut the presumption under Evidence Code section 647 other than her own self-serving statements that she was not personally served. The Court DENIES the Motion to Quash Service of Summons. The Court orders the Defendant to file a responsive pleading within 5 business days. The Plaintiff is ordered to serve notice of the Court's ruling.
11	30-2026-01567279 2525 Main Apartment, LP vs. Xie	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 11) and the Complaint (ROA 2). The Demurrer to the Complaint is SUSTAINED. The attached Three-Day Notice To Permanently Perform Covenant or Quit attached to the Complaint fails to state the premises address, "within three days...you are required to do one of the following," but only lists one option without listing the quit section of the notice. It appears to the Court as if the notice is missing a page or more. If Plaintiff can provide documentation to the Court that all of the required information was provided to the Defendants at the time of service of the Notice to Permanently Perform Covenant or Quit, the Court will allow the

		Plaintiff leave to amend to attach the documents properly with the Complaint. If the Plaintiff served the Notice to Permanently Perform Covenant or Quit as shown in the Complaint, the Demurrer will be sustained without leave to amend, as the law does not permit the Plaintiff to amend a defective notice to pay or quit.
12	30-2026-01558581 Far West South Coast, Ltd. vs. Platek	The Court has reviewed the Court docket, including Demurrer to Complaint (ROA 29) filed on 5/18/26, Request for Clerk's Default Judgment (ROA 32) filed 5/19/26, Application for Writ of Possession (ROA 33), Writ of Possession (ROA 34), and Judgment – Unlawful Detainer (ROA 35). Court takes Judicial Notice of the 5/6/2026 Minute Order (ROA 27) and Notice of Ruling (ROA 26). The Court Clerk's Office entered a Default against Defendant Mark Platek in error on 5/19/2026. The Court vacates the Default entered on 5/19/2026 and the Judgment of 5/20/2026. The Court QUASHES the Writ of Possession. The Court Clerk is to notify the Orange County Sheriff's Department forthwith that the Writ is QUASHED and the lockout CANCELLED. The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 29) and the Complaint (ROA 2). The Court OVERRULES the Demurrer. The Defendant is ordered to file an answer within 5 calendar days. Plaintiff is ordered to serve notice of the Court's ruling.
13	30-2026-01567335 Ridgewood Village L.P. vs. Vazquez	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 7), Plaintiff's Opposition, and the Complaint (ROA 2). The Court OVERRULES the Demurrer. The Defendant is ordered to file an answer within 5 calendar days. Plaintiff is ordered to serve notice of the Court's ruling.
14	30-2026-01558051 Daibo, LLC vs. Mungia	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 13) and the Complaint (ROA 2). The Court OVERRULES the Demurrer. The Defendant is ordered to file an answer within 5 calendar days. Plaintiff is ordered to serve notice of the Court's ruling.